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Athens, 02-02-2024
Protocol No.: 463

OPINION 1/2024

The Hellenic Data Protection Authority convened at the invitation of its President for a meeting via teleconference on Tuesday, January 23, 2024, at 09:30, and, following that meeting, on Thursday, January 25, 2024, at 14:00, in order to issue an opinion on a presidential decree at the request of the Ministry of Digital Governance. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, as rapporteur, Christos Kalloniatis, Aikaterini Iliadou, as well as the alternate member Nikolaos Libos in place of the regular member Charalambos Anthopoulos, who, although duly summoned, did not attend due to a conflict. The regular member Grigoris Tsolias and his alternate Maria Psalla also did not attend due to a conflict, although they were duly summoned. Present, without voting rights, were Eleni Maragkou, Georgia Panagopoulou, and Georgios Rousopoulos, expert scientists, as assistants to the rapporteur, and Georgia Palaiologou, an employee of the administrative affairs department, as secretary. Konstantinos Limniotis, expert scientist, assistant to the rapporteur, did not attend due to a conflict.

The Authority took into account the following:

The Ministry of Digital Governance (hereinafter MDG) submitted for Opinion from the Authority a draft presidential decree provided for in Article 107, paragraph 6 of Law 4727/2020 (hereinafter PD), concerning the Personal Number (hereinafter PN), with document no. G/EIS/8531/01-12-2023. Specifically, according to Article 107, paragraph 6 of Law 4727/2020: "By presidential decree issued after a proposal by the Ministers of Finance, Labor and Social Affairs, and Digital Governance and after an opinion of the Hellenic Data Protection Authority, the measures, guarantees, and security mechanisms for the prevention and handling of risks to the protection of personal data of natural persons are determined, the process for granting the Personal Number, and in particular the processing services, the required documentation and the control services thereof, the reasons for its suspension, the timeline provided for in paragraph 5 of Article 11, the process for issuing the PN, the terms and the process for providing identity verification services for natural persons to public sector entities and for matching the PNs with the identifying numbers of the registries (specific sectoral numbers) of public sector entities, particularly VAT numbers and AMKA, the specific issues for maintaining the Personal Number Registry, the technical and organizational measures maintained by the G.G.P.S.D.D., the technical and organizational measures maintained by public sector entities that process the PN through the Interoperability Center of the G.G.P.S.D.D., as well as any technical or other detail for the implementation of Article 11. The G.G.P.S.D.D. is obliged to conduct an impact assessment of the processing on the protection of personal data prior to the issuance of the presidential decree in accordance with the provisions of the General Data Protection Regulation."

At the Authority's meeting on December 19, 2023, the following individuals attended following the invitation with protocol no. G/EXE/3171/11-12-2023: A, Director of the Office of the Minister of Digital Governance, B, General Secretary of Information Systems and Digital Governance, C, Data Protection Officer of the Ministry, Evangelia Mitrou, Legal Advisor on personal data issues with AMDSA 14878, Vasilis Karkatzounis, Legal Advisor of the Ministry with AMDSA 34804, D, General Director of Productive Operations of the Ministry, and E, Director of Systems Support of the Ministry, who answered questions, provided clarifications, and expressed the positions of the MDG on various provisions of the draft PD. Subsequently, the MDG submitted the memorandum with protocol no. G/EIS/9/02-01-2024, which included relevant clarifications and positions, as well as a draft of the impact assessment of the processing on the protection of personal data provided for in Article 107, paragraph 6 of Law 4727/2020. The draft of the submitted PD is included in the Annex of this Opinion.

The Authority, after examining the elements of the file and having heard the rapporteur and the assistants to the rapporteur, who attended without voting rights, after thorough discussion

ISSUES THE FOLLOWING OPINION

A) General Observations

1. The Authority notes that the content of Article 11 of Law 4727/2020, which regulates the basic principles of the use of the PN, came to its attention with the posting of the provisions for voting in public consultation. At the initiative of the Authority, information and details regarding the key elements of the planned regulation were requested. This was followed by an exchange of clarifying documents during the period of July-September 2020 (see documents with protocol no. G/EXE/5099/20-07-2020, G/EIS/5571/10-08-2020, G/EXE/5571-1/13-08-2020, and G/EIS/6117/09-09-2020). It is noted that the law was submitted and voted on without a request for or issuance of an Opinion from the Authority, while clarifications on questions that had been raised were still pending.

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2. The design choice to maintain the required data of all citizens in the PA registry results in the centralization of data such as full name, patronymic, matronymic, place of birth, as well as all sectoral identifiers used by citizens for various purposes in different sectors (Tax Identification Number, Identity Card Number, Social Security Registration Number). It is emphasized that if the personal data "name – surname – patronymic – matronymic – date of birth - place of birth" were updated in all individual registries (which is considered a basic prerequisite for the proper functioning of the PA as a method of identity verification), then a different architecture could have been considered, and it would not have been necessary to maintain all individual sectoral identifiers in the central PA registry. This issue had already been pointed out by the Authority in the past, even prior to the GDPR (see the Authority's Annual Report for 2012, p. 61), and it was reiterated during the aforementioned exchange of documents prior to the voting of Law 4727/2020 (see the Authority's document with reference number G/EX/5571-1/13-08-2020).

3. Both from the law and from the draft Presidential Decree, it appears that the PA is introduced as a necessary element of the identity verification service for natural persons to public sector entities. The PA registry allows for the matching of the PA with the identification numbers of the individual registries (sectoral identifiers) of each public entity and the correct identification of the citizen through an easily memorable number, but without this number being maintained in the individual registries. Given the purpose of the processing, the Authority considers that the processing concerning the PA registry complies with the processing principles of Article 5(1) of the GDPR. It is emphasized that, for the proper implementation of this design, it must be ensured that this purpose will remain in the future as the sole purpose of processing by all public (as well as other non-public) entities (based on the principle of purpose limitation). Any future processing of the PA for a different purpose will require legislative regulation and an assessment of the legality of the new processing.

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4. It is particularly noted that up to the stage of issuing the opinion and after inquiries from the Authority, it was stated that there is no provision for a public document in which the PA will be recorded (such as an identity card or other). A corresponding provision is not found in the draft Presidential Decree nor in the Law. The Authority points out that it is issuing an opinion on the Presidential Decree and assesses the level of protection of the use of the PA as personal data in the context of the aforementioned processing (adhering to the principle of minimization), with the assumption that it is not recorded in any public document.

5. It is also noted that, with the establishment of the PA (and after the proper functioning of this registry and the related interoperability processes), the need for public entities to maintain multiple sectoral identifiers for citizens ceases (i.e., a public entity maintaining more than one sectoral identifier for each citizen), as this would contradict the principle of minimization. Therefore, it is proposed that the long-term design should foresee: a) the adaptation of public registries to the logic of maintaining only

one sectoral identifier per entity (and thus, where multiple identifiers are currently maintained, the applications should be redesigned to eliminate other unnecessary sectoral identifiers) and b) to exclude, at a time to be appropriately determined by the design of the ΥΨΔ, the possibility of transmitting by the ΥΨΔ to public entities sectoral identifiers different from the identifier corresponding to the sector of each entity, an activity which (as interoperability) falls under the jurisdiction of the ΥΨΔ. A corresponding regulation could be foreseen similar to paragraph 2 of Article 8 of the draft Presidential Decree.

6. From the provisions of the draft Presidential Decree presented to the Authority, there is no design regarding the potential role of the PA as an identification data as provided by the eIDAS Regulation, or regarding its relationship with other identifiers.

1 Regulation (EU) 910/2014 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 23 July 2014 on electronic identification and trust services for electronic transactions in the internal market and repealing Directive 1999/93/EC

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identifier in the event that the PA does not constitute an identification data within the framework of the said Regulation. If there is a relevant design, it is advisable that the relevant provision be included in the Presidential Decree, as well as any planning for the potential use of the PA for the authentication of citizens in electronic services, through the Unified Digital Portal of Public Administration - gov.gr.

B) On the provisions of the draft Presidential Decree

7. In Article 2, paragraph 5, it is stated that the PA is "issued and granted," while in the previous paragraph 4, it is only stated that it is "granted." If there is no specific justification for the differentiation, the same wording should be used in both paragraphs. Otherwise, the difference between issuance and granting should be explained in these two paragraphs.

8. In Article 3, paragraph 1, it is stated that the PA registry is maintained for the purpose of providing identity verification services for natural persons to public sector entities and the matching of PAs with the identification numbers of the registries (specific sectoral numbers) of public sector entities to achieve interoperability of the information systems of these entities through the Interoperability Center of the G.G.P.S.D., according to Article 84 of Law 4727/2020. The reference to achieving interoperability of the information systems of the entities, as part of the purpose of processing, does not seem to be correct. The purpose of the PA is specific and particular, concerning the "provision of identity verification services for natural persons to public sector entities and the matching of PAs with the identification numbers of the registries (specific sectoral numbers) of public sector entities." This is implemented through the Interoperability Center of the G.G.P.S.D., according to Article 84 of Law 4727/2020, but achieving interoperability of the information systems of the public sector does not require the use of the PA, nor is it a purpose of the law and the Presidential Decree. Moreover, for achieving interoperability, the correct matching of the sectoral identifiers of the entities is sufficient, which can be implemented without the use of the PA. Therefore, it is proposed to delete the reference to the above purpose or to accurately rephrase the provision.

9. The above issue regarding the stated purpose of processing is also found in Article 7, paragraph 1 of the draft Presidential Decree. Additionally, the references in Article 7, paragraph 1 should be rephrased as security objectives.

10. In Article 3, paragraph 6, it is stated that "6. Access to the PA Registry is permitted exclusively to authorized employees of the G.G.P.S.D." This specific provision concerns security measures and it is proposed to include it in Article 7, paragraph 4 of the draft Presidential Decree, which addresses issues of personal data protection, and specifically security measures.

11. In Article 7, paragraph 2, a specific legal basis for processing is provided based on Article 6, paragraph 1 of the GDPR, and it mentions the fulfillment of a duty performed in the public interest and in the exercise of public authority, according to point (e) of paragraph 1 of Article 6 of the GDPR. It is noted that the legal basis is grounded in Law 4727/2020, with Article 11 establishing the PA, and thus, it is inferred that the most appropriate legal basis is point (c) of paragraph 1 of Article 6 of the GDPR. In any case, it is proposed to remove the reference to the legal basis for processing, as it does not need

to be mentioned in the Presidential Decree and may lead to confusion. This, of course, does not relieve the G.G.P.S.D., as the data controller, from the obligation to provide data subjects with information regarding the legal basis for processing, according to the provisions of Article 13, paragraph 1, point (c) of the GDPR.

12. The reference in paragraph 3 of Article 7 of the draft Presidential Decree to the role of the data controller is also considered unnecessary, as it is already defined in Law 4727/2020, Article 11, paragraph 4, and Article 107, paragraph 6.

13. In Article 7, paragraph 4, the mentioned risks do not include all those described in Recital 83 of the GDPR: "...accidental or unlawful destruction, loss, alteration, unauthorized disclosure or access to personal data...". Although the reference to risks is indicative, it is proposed to suitably complete it or to remove it, as in each

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In the event, the data controller is obliged to ensure the protection of data from risks, in accordance with the explicitly defined provisions of the GDPR.

14. In Article 7, paragraph 4, subparagraph d), it is proposed to replace the designation "reliable" for the network with "trusted," and to supplement the provision with a reference that "any data exchange through electronic means is carried out, either via the aforementioned trusted network, or by encrypting the data to be sent. Acceptable international standards are used for encryption, with a secure key size."

15. Article 7, paragraph 4, subparagraph g) refers to the application of data classification techniques and pseudonymization. It is proposed that the content of the reference to classification techniques be explained and specified, as well as which data from the PA registry can undergo pseudonymization for the stated purpose of processing. Otherwise, it is proposed to remove these references.

16. Article 7, paragraph 5 refers to the access of authorized employees of the K.E.P. to the special application myInfo. It is proposed to examine whether this paragraph should be omitted from the Presidential Decree and included in the Joint Ministerial Decision regarding the myInfo application.

17. Article 7, paragraph 9 states that public sector entities assign identifying numbers from their registries to natural persons, in accordance with the legislative framework governing each entity and the assignment of special identifying numbers, ensuring the interoperability of their registries with the Interoperability Center (K.E.D.) of the G.G.P.S.D.. This specific reference does not seem to have a place in the Presidential Decree, as it describes a processing activity that is already in effect, does not concern the data controller, and does not introduce any change relevant to the PA.

18. Article 7, paragraph 10 includes the provision for the retention period of the data of the PA Registry with reference to paragraph 6 of Article 3 regarding its deactivation. However, the reference to the regulation and the terms of deactivation is described in Article 2, paragraph 6. It is proposed to correct the reference. The same erroneous reference to paragraph 6 of Article 3 is also found in paragraph 5 of Article 3.

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The President

The Secretary
Konstantinos Menoudakos
Georgia Palaiologou

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ANNEX

PRESIDENTIAL DECREE NO.

Procedure for the issuance and granting of the Personal Number, measures and guarantees for the protection of personal data

THE PRESIDENT OF THE HELLENIC REPUBLIC

Having regard to:

1. The provisions:

- a) of paragraphs 1 and 2 of Article 5A and Article 9A of the Constitution.
- b) of Law 4727/2020 "Code of Digital Governance (Incorporation into Greek legislation of Directive (EU) 2016/2102 and Directive (EU) 2019/1024) - Code of Electronic Communications (Incorporation into Greek law of Directive (EU) 2018/1972) and other provisions" (A' 184) and in particular Article 11 and paragraph 6 of Article 107.
- c) of Article 81 of Law 4954/2022 "Supplementary measures for the implementation of Regulation (EU) 2019/788 of the European Parliament and of the Council regarding the European Citizens' Initiative and the Implementing Regulation (EU) 2019/1799 of the Commission for the establishment of technical specifications for the individual online collection systems - Provisions related to the electoral process and the control of revenues and expenditures of parties, coalitions, and candidates for parliament and elected officials - Other urgent provisions" (A' 136).
- d) of Article 25 of Law 3731/2008 "Reorganization of the municipal police and regulations on other matters under the jurisdiction of the Ministry of Interior" (A'263).
- e) of Law 4623/2019 "Regulations of the Ministry of Interior, provisions for digital governance, pension regulations, and other urgent issues" (A' 134) and in particular Article 47 thereof.
- f) of the Code of Tax Procedure and in particular Article 11 of the aforementioned law (Law 4987/2022, A' 206).
- g) of Articles 115 et seq. of Law 4483/2017 "Regulations for the modernization of the institutional framework for the organization and operation of Municipal Water Supply and Sewerage Enterprises (D.E.Y.A.) - Regulations related to the organization, operation, finances, and personnel of Local Authorities - European Groupings of Territorial Cooperation - Citizens' Registry and other provisions," as in force (A' 107).

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- η) the provisions of Article 153 paragraphs 1 and 2 of Law 3655/2008 "Administrative and organizational reform of the Social Security System and other insurance provisions." (A' 58).
- θ) Article 13 of Law 4704/2020 "Acceleration and simplification of the support for audiovisual works, enhancement of Digital Governance and other provisions" (A' 133).
- ι) Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (L 119).
- ια) Law 4624/2019 "Authority for the Protection of Personal Data, measures for the implementation of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, for the protection of natural persons against the processing of personal data and incorporation into national legislation of Directive (EU) 2016/680" (A' 137).
- ιβ) Presidential Decree 81/2019 "Establishment, merger, renaming, and abolition of Ministries and determination of their competences - Transfer of services and competences between Ministries" (A' 119).
- ιγ) Presidential Decree 40/2020 "Organization of the Ministry of Digital Governance." (A' 85).
- ιδ) Presidential Decree 142/2017 "Organization of the Ministry of Finance" (A' 181).
- ιε) Presidential Decree 134/2017 "Organization of the Ministry of Labor, Social Security and Social Solidarity" (A' 168).
- ιστ) Article 90 of the Code of Legislation for the Government and Government Bodies (Presidential Decree 63/2005, A' 98), which was maintained in force by paragraph 22 of Article 119 of Law 4622/2019 (A' 133).
- ιζ) Joint Decision No. 7791/245/Φ80321/2009 of the Ministers of Interior - National Defense - Employment and Social Protection - Health and Social Solidarity - Merchant Shipping, Aegean and Island Policy "Determination of procedures for the issuance of AMKA by the KEP and Social Security Agencies" (B' 596).
- ιη) Decision No. 24596 ΕΞ 2023 of the Ministers of Digital Governance and State "Replacement of Joint Ministerial Decision No. 6810 ΕΞ 2021 'Operation of the National Communication Registry (E.M.Ep.)' (B' 988)" (B 3399).

ιθ) Joint Decision No. ΓΔΟΔΥ/ΔΔΥ/490/10-02-20 of the Ministers of Labor and Social Affairs, Health, Interior, and State "Regulations for the digitization of the birth declaration process" (B' 404).

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κ) Joint Decision No. /2023 "Confirmation and correction of personal data in public sector registers" (B' ...).

κα) Decision No. 118944 ΕΞ 2019/23.10.2019 of the Minister of State "Operation of the Interoperability Center of the General Secretariat for Information Systems of Public Administration of the Ministry of Digital Governance" (B' 3990).

κβ) Circular No. Φ80320/1516/39/Δ.18 of the Ministry of Labor and Social Affairs specifying the cases of beneficiaries for obtaining AMKA and the necessary conditions for obtaining the number.

2. The /2023 proposal for fiscal implications.

3. The No. /2023 Opinion of the Authority for the Protection of Personal Data.

4. The No. /2023 opinion of the Council of State, following a proposal from the Ministers of National Economy and Finance, Labor and Social Security, and Digital Governance, we decide:

Article 1

Purpose - Subject

This Presidential Decree establishes:

α) the procedure for the issuance and granting of the Personal Number (hereinafter P.A.), the required supporting documents and the control services thereof, the timeline for its issuance, and the reasons for its suspension,

β) the specific technical and organizational issues for the maintenance of the Personal Number Registry,

γ) the terms and the procedure for providing identity verification services of natural persons to public sector entities and for the matching of P.A. with the identification numbers of the registries (specific sectoral numbers) of public sector entities, as defined in paragraph 57 of Article 2 of Law 4727/2020 (A' 184).

δ) the measures, guarantees, and security mechanisms for the prevention and addressing of risks for the protection of personal data of natural persons from the processing of the P.A., as well as the technical and organizational measures taken by the General Secretariat for Information Systems and Digital Governance (G.G.P.S.Ψ.D.) and the public sector entities for this purpose.

****Article 2****

****Personal Number (P.N.) - Beneficiaries****

1. The P.N. is a mandatory element for the verification of the identity of individuals in their transactions with public sector entities.

2. The P.N. consists of twelve (12) alphanumeric characters, of which at least nine (9) are numeric. To form the P.N., three (3) alphanumeric characters are generated using the procedure provided in Article 4 of this document, followed by the nine (9) numeric characters of the Tax Identification Number (hereinafter T.I.N.) of each individual at the time of issuance of the P.N.

3. Alphanumeric characters that may be used to form the P.N. are understood to be only the digits zero (0) to nine (9), as well as the uppercase letters of the Greek alphabet that have corresponding letters in the Latin alphabet.

4. The P.N. is granted once to each individual, is unique, and does not change during their lifetime.

5. The P.N. is issued and granted mandatorily to every individual entitled to a T.I.N. or Social Security Registration Number (S.S.R.N.), in accordance with the respective tax and insurance legislation.

6. The P.N. becomes inactive in the following cases:

a) upon the death or declaration of disappearance of the individual,

b) if the legal conditions for the issuance of a P.N. cease to apply according to paragraphs 4 and 5 of this article.

****Article 3****

****Personal Number Registry (P.N. Registry)****

1. The General Secretariat for Information Systems and Digital Governance (G.S.I.S.D.G.) of the

Ministry of Digital Governance develops and maintains the Personal Number Registry (P.N. Registry), with the purpose of providing identity verification services for individuals to public sector entities and matching P.N.s with the identification numbers of the registries (specific sectoral numbers) of public sector entities to achieve interoperability of the information systems of these entities through the Interoperability Center of G.S.I.S.D.G., in accordance with Article 84 of Law 4727/2020.

2. The P.N. Registry includes only the data that are absolutely necessary for the verification of the identity of the individual and the achievement of the purposes of this document, specifically:

- a) Personal number (P.N.)
- b) First name
- c) Last name
- d) Father's name
- e) Mother's name
- f) Date of Birth
- g) Place of Birth
- h) Tax Identification Number (T.I.N.)
- i) Identity Card Number, if the individual possesses one
- j) Social Security Registration Number (S.S.R.N.), if the individual possesses one.

3. The above data is obtained through interoperability with the following public sector registries:

- a) Citizens Registry of the Ministry of Interior
- b) Tax Registry of the Ministry of Finance maintained by the Independent Authority for Public Revenue (I.A.P.R.)
- c) S.S.R.N. Registry maintained by the Electronic Governance of Social Security S.A. (E.G.S.S.)
- d) Identity Card Registry of Greek Citizens maintained by the Hellenic Police (H.P.) of the Ministry of Citizen Protection
- e) Third Country Citizens Registry maintained by the Ministry of Migration
- f) Asylum Registry maintained by the Ministry of Migration.

4. The above data is collected and maintained securely, under the conditions specified in Article 6 of this document.

5. In cases where the P.N. becomes inactive, according to paragraph 6 of Article 3 of this document, a relevant indication is recorded in the P.N. Registry.

6. Access to the P.N. Registry is permitted exclusively to authorized employees of G.S.I.S.D.G.

****Article 4****

****Issuance of P.N. through the special electronic application myInfo****

1. In the case that the individual possesses an active T.I.N. or S.S.R.N., in order for the P.N. to be issued, the process of confirming details in the special electronic application myInfo must be completed beforehand, either through the Unified Digital Portal of Public Administration (gov.gr-UDPP) or through the Citizen Service Centers (C.S.C.), in accordance with Articles 4, 5, and 6 of the Joint Ministerial Decision.

2. Following the confirmation of the details by the individual:

- a) In the case that the individual possesses an active T.I.N., G.S.I.S.D.G., using the T.I.N. confirmed by the individual, and after randomly generating the first three (3) alphanumeric characters, completes the issuance of the P.N., which is automatically recorded in the P.N. Registry.
- b) In the case that the individual does not possess an active T.I.N., but possesses an active S.S.R.N., G.S.I.S.D.G., upon the request of the individual, notifies I.A.P.R. via interoperability, in order to proceed with the assignment of a T.I.N. based on the confirmed details of the individual. G.S.I.S.D.G. is updated on the individual's T.I.N. from I.A.P.R. via interoperability and subsequently generates the first three (3) alphanumeric characters, completing the issuance of the P.N., which is automatically recorded in the P.N. Registry.

3. In the event that it is not possible to confirm the details of the individual through the myInfo application, the issuance of the P.N. is suspended until the confirmation of the details is successfully completed, in accordance with the Joint Ministerial Decision.

4. Individuals follow the procedures of this article for the issuance of a P.N. for their minor protected

members.

5. Upon completion of the P.N. issuance process, the individual is informed of the assignment of their P.N. via the myInfo application, either through the Unified Digital Portal of Public Administration (gov.gr-UDPP) or through the Citizen Service Centers (C.S.C.), or by notification sent to their contact details registered in the National Communication Registry (N.C.R.) or by any other appropriate means.

****Article 5****

****Automated issuance of P.N.****

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1. The G.G.P.S.Y.D. has the ability to automatically issue a P.A. without prior action by the individual in the following cases:

a) For individuals who have already completed the process of confirming their details, based on the Joint Ministerial Decision, but the process of issuing their P.A. has not been completed.

b) For individuals whose surname, first name, patronymic, maternal name, and date of birth, as they appear in the special electronic application myInfo, in accordance with the Joint Ministerial Decision, match exactly with the corresponding details of their registration in the Tax Registry of the Ministry of Finance maintained by the A.A.D.E.

c) For individuals born after the entry into force of this Decree, provided that the process of assigning a TIN has been completed.

2. Upon completion of the P.A. issuance process, the individual is informed of the assignment of their P.A. through the myInfo application, either via the Unified Digital Portal of Public Administration (gov.gr-EYP) or through the Citizen Service Centers (K.E.P.), or by notification sent to their registered contact details in the E.M.Ep. or by any other appropriate means.

Article 6

Verification of the identity of individuals using the P.A.

1. The G.G.P.S.Y.D. provides public sector entities with the ability to verify the identity of individuals and to obtain the information necessary for fulfilling their legal purposes and responsibilities, by matching the P.A. of individuals with the identification number of the respective registry (specific sectoral numbers) of paragraph 4 of Article 3 of this document.

2. The G.G.P.S.Y.D. takes appropriate measures to ensure the interoperability of information systems and applications, in accordance with this Decree and Article 47 of Law 4623/2019 (A' 134).

Article 7

Issues of personal data protection

1. The purpose of processing personal data within the framework of this document is to verify the identity of individuals and to achieve interoperability of the information systems of the competent authorities through the Interoperability Center. This purpose is achieved by (a) facilitating and enhancing security when individuals access digital services provided by public sector entities, (b) developing interoperable systems with valid, accurate, and up-to-date information about individuals interacting with the public sector, and (c) avoiding repetitive entries from different points with increased administrative costs and risk of errors for the individual and the public (application of the "once only" principle).

2. The processing of personal data of individuals is necessary for the performance of a task carried out in the public interest and in the exercise of public authority, in accordance with point e) of paragraph 1 of Article 6 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of individuals with regard to the processing of personal data (General Data Protection Regulation, hereinafter G.D.P.R.), in conjunction with Article 11 of Law 4727/2020 (A' 184) and this Decree.

3. For the purposes of applying this Decree, the G.G.P.S.Y.D. of the Ministry of Digital Governance is the Data Controller of the personal data as defined in paragraph 7 of Article 4 of the G.D.P.R. maintained in the P.A. Registry. In this context, the Ministry of Digital Governance takes appropriate

technical and organizational measures to ensure and demonstrate that the processing is carried out lawfully, particularly in accordance with the G.D.P.R., Law 4624/2019 (A'137), and the applicable Information Systems Security Framework of the G.G.P.S.Y.D., as in force.

4. The G.G.P.S.Y.D. is obliged to take and continuously maintain appropriate and necessary technical and organizational security measures for the P.A. Registry of Article 3 of this document, ensuring in particular the protection of data from unauthorized or unlawful processing and accidental loss, destruction, or damage. The above measures are specified in the impact assessment of the processing on the protection of personal data and include at least the following:

- a. Distinct user roles in the system and corresponding access rights, at least for aa) viewing, bb) data extraction, cc) data deletion, dd) granting authorization for data extraction, ee) assigning roles to each user, ff) technical maintenance of the system, and gg) monitoring user actions.
- b. Creation of user accounts and authentication methods based on the Information Systems Security Policy of the G.G.P.S.Y.D.
- c. Access to the data of the Registry only by authorized and appropriately trained users, according to the role assigned to them.
- d. User access only from a registered number of terminals and using a reliable network.

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e. Provision of appropriate training to system users, depending on their duties.

f. Keeping records of actions performed on the data of the Public Registry. These records include the username and the time of the event, as well as the exact action taken by the user.

g. Application of data classification and separation techniques at a physical or logical level and specification of protective measures, such as encryption and pseudonymization, by category of data.

5. For the access of authorized employees of the Citizen Service Centers (K.E.P.) to the special application myInfo, verification of their identity details (authentication) is carried out using the Public Administration Codes of the General Secretariat for Digital Governance, in accordance with decision No. 29810 EΞ 2020 of the Minister of State (B' 4798).

6. The provision of online services is conducted through the Interoperability Center of the General Secretariat for Digital Governance, in accordance with its Information Systems Security Policy, the Policy for Proper Use of online services, as well as the provisions for the protection of personal data.

7. Recipients of the data from the Public Registry are public sector entities for the provision of services to individuals and the exercise of the powers that have been legally assigned to them.

8. Public sector entities process the Public Registry as independent data controllers, through the Interoperability Center of the General Secretariat for Digital Governance, taking the necessary technical and organizational measures, with the sole purpose of verifying the identity of individuals for the provision of services to natural and legal persons, the general handling of individuals' cases, and the exercise of their powers, without collecting and storing them in their information systems or filing systems.

9. Public sector entities assign identification numbers from their registries to individuals, in accordance with the legislative framework governing each entity and the assignment of special identification numbers, ensuring the interoperability of their registries with the Interoperability Center (K.E.D.) of the General Secretariat for Digital Governance.

10. The data of the Public Registry are retained for the entire period that the Public Registry is active and for a period of twenty (20) years from its deactivation, in accordance with paragraph 6 of Article 3 of this document, in the context of fulfilling a duty performed in the public interest and in the exercise of the special public authority for maintaining the Public Registry assigned to the General Secretariat for Digital Governance based on this document, and under the conditions provided in the General Data Protection Regulation (GDPR) and Law 4624/2019 (A' 137), as applicable. After the expiration of the aforementioned period, the data is destroyed. The General Secretariat for Digital Governance ensures that the data is destroyed in a manner that guarantees it cannot be recovered.

Article 8

Timeline - Transitional Provisions

1. Individuals who will issue a Public Registry through the process provided in Articles 4 and 5 of this decree within three (3) months from the publication of this document have the option to choose two (2) of the three (3) alphanumeric digits of their Public Registry and those of their minor dependents, instead of the digits being randomly generated by the General Secretariat for Digital Governance. The selection is made through the special electronic application myInfo either via the Single Digital Portal of Public Administration (gov.gr-ΕΨΠ) or through the Citizen Service Centers (Κ.Ε.Π). By decision of the Ministers of Finance, Labor and Social Affairs, and Digital Governance, this deadline may be extended for a period not exceeding a total of six (6) months.

2. Until the adaptation of the procedures and information systems of public sector entities to achieve their interoperability with the data of the Public Registry and in any case for a period not exceeding twelve (12) months from the publication of this document, existing procedures for verifying the identity of individuals may continue to be applied by public sector entities, specifically through identification using Tax Identification Number (ΑΦΜ), Social Security Number (ΑΜΚΑ), and Greek Citizen Identity Card. By decision of the Ministers of Finance, Labor and Social Affairs, and Digital Governance, the deadline may be extended for a period not exceeding a total of twelve (12) months.

Article 9

Commencement of Effect

The validity of this presidential decree begins from its publication in the Government Gazette.

We assign the Minister of Digital Governance with the publication and execution of this decree.